

Chapter III End of waste

Article 11 Secondary products materials and substances

1 With a view to determining whether it is appropriate to deem certain waste to have ceased being waste, to have completed a re-use, recycling or recovery operation, and to reclassify that waste as secondary products materials or substances, the Commission shall assess whether the following conditions are met:

- reclassification would not lead to overall negative environmental impacts;
- a market exists for such a secondary product, material or substance

2 On the basis of its assessment pursuant to paragraph 1, the Commission shall, in accordance with the procedure referred to in Article 36(2), adopt implementing measures in respect of a specific product, material or substance category of waste, specifying the environmental and quality criteria to be met in order for that waste to be deemed to have become a secondary product material or substance

3 The criteria set pursuant to paragraph 2 shall be such as to ensure that the resulting secondary product, material or substance meets the necessary conditions to be placed on the market.

The criteria shall take into account any risks of environmentally harmful use or shipment of the secondary material or substance, and shall be set at a level that guarantees a high level of protection for human health and the environment.

Chapter IV Hazardous waste

SECTION ONE CLASSIFICATION AND LISTING

Article 12 Classification

Waste shall be regarded as hazardous waste if it displays one or more of the properties listed in Annex III.

Hazardous waste produced by households shall not be regarded as hazardous waste until it is collected by an undertaking which carries out waste treatment operations or by a private or public waste collector.

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HARMONISATION OF THE OECD AND THE BASEL CONVENTION CONTROL SYSTEMS ON TRANSBOUNDARY MOVEMENTS OF WASTES

Submission by the OECD secretariat

1 OECD's Environment Policy Committee (EPOC) decided in April 1997 that the Working Group on Waste Management Policy (WGWP) should increase co-operation with the Secretariat of the Basel Convention (SBC) under the OECD-SBC Memorandum of Understanding to: i) identify areas where it would be feasible and appropriate to harmonise procedures and requirements of OECD Council Decision C(92)39/FINAL, Concerning the Control of Transfrontier Movements of Wastes Destined for Recovery Operations, with those of the Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and Their Disposal; ii) identify areas where duplication can be eliminated; and iii) report back to EPOC on the conclusions in March 1999.

2 Work towards harmonisation of the OECD and Basel Convention control systems started in October 1998. At this WGWP meeting a general consensus among the OECD Member countries was reached on the main areas of harmonisation. The outcome of this meeting provided the basis for the reports on the WGWP conclusions, which were submitted to EPOC in March 1999. The main conclusions were:

- The OECD Control System and the related Council Acts should be retained in a streamlined form which would make the OECD Control System more economically efficient and environmentally safe and would enhance harmonisation with the Basel Convention.

- Certain procedural elements of the OECD System should be retained, to facilitate continuation of economically efficient and environmentally safe recovery of wastes within the OECD area.

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- The OECD Control System should be harmonised with the Basel Convention by:

- replacing the OECD green, amber and red waste lists by Basel Convention Annexes VIII and IX;
- applying green procedure to Annex IX wastes and amber procedure to Annex VIII wastes, and
- eliminating the OECD Review Mechanism, but retaining a possibility for differing controls in exceptional cases.

3 In March 1999, EPOC welcomed the enhanced and accelerated efforts of the WGWP to harmonise the OECD Control System with the Basel Convention System and Delegates endorsed the proposals of the WGWP related to further work on this harmonisation.

4 In early 1999 the WGWP considered the implications related to the adoption of the Basel Convention lists and the repeal of the OECD green, amber and red lists. The Group agreed that the following general principles should be used as a starting point for the amendment of Decision C(92)39/FINAL:

- apply the OECD green control procedure to Basel Convention Annex IX wastes;
- apply the OECD amber control procedure to Basel Convention Annex VIII wastes; and
- apply national procedures to unlisted wastes.

5 The WGWP completed the harmonisation work in October 2000. Consequently, the draft revised Council Decision C(92)39/FINAL was submitted to EPOC in November 2000 for approval and further to Council in May 2001, for final adoption on 14 June 2001.

6 Presently the OECD Secretariat is finalising the new forms for the notification and movement documents (Part C of Appendix 8 of the revised C(92)39/FINAL), including the instructions for completing the forms. Once finalised the forms will be submitted to EPOC for approval and further to Council for final adoption. This is estimated to take place during the third or fourth quarter of 2001. The new forms are planned to fully incorporate all OECD, Basel Convention and EU requirements and will therefore provide a good basis for a unified global notification and tracking system for transboundary movements of wastes.

Fundamental Law for Establishing a Sound Material-Cycle Society

(Tentative translation)

(Law No.110 of 2000)

Environment Agency

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Chapter 3. Fundamental Policies for Establishing a Sound Material-Cycle Society

Section 1. Policies of the State

(Measures for Restraining Raw Materials, Products, etc. from Becoming Wastes, etc.)

Article 17. The State shall take regulatory and other necessary measures so that businesses may restrain raw materials, etc. from becoming wastes, etc. through effective use of raw materials, introduction of reusable containers, etc. in their business activities.

2 The State shall take necessary measures, such as dissemination of related knowledge, so that the public may restrain products, etc. from becoming wastes, etc. by using products as long as possible, choosing the products for which containers, etc. are not excessively used when purchasing goods, and so on.

(Measures for Proper Recycling and Disposal of Recyclable Resources)

Article 18. The State shall take regulatory and other necessary measures so that businesses may, in their business activities, make appropriate recycling for themselves of the recyclable resources resulting from such activities, or promote the recycling of them to be made appropriately, or dispose on their own responsibility of the recyclable resources not recycled.

2. The State shall take necessary measures so that the public may promote the appropriate recycling and disposal of recyclable resources through cooperation in separate collection of their used products, etc. which have become recyclable resources; cooperation in the proper and smooth execution of such collection, delivery and recycling of recyclable resources as stipulated in the following Paragraph, and other cooperative actions.

3. In order to promote the appropriate and smooth recycling of products, containers, etc. when they have become recyclable resources, with regard to the products, containers, etc. for which it is deemed necessary for the State, local governments, businesses and the public to share their respective roles properly, and for which the roles of the businesses concerned are deemed important in establishing a sound material-cycle society from the viewpoints of the design of such products, containers, etc. the selection of their raw materials, and the collection, etc. of such products, containers, etc. when they have become recyclable resources, the State shall, after taking the technological difficulty in disposing of the recyclable resources concerned,